

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jesse Spieler-Jones	Team: Team # 5	CCRB Case #: 200915966	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/30/2009 6:01 PM	Location of Incident: Meagher Avenue and Throgsneck Expressway	18 Mo. SOL 3/30/2011	Precinct: 45
Date/Time CV Reported Mon, 10/12/2009 10:49 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/12/2009 10:49 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	14441	926015	PBBX TF
2. POM Thomas Nicoletti	10662	925830	PBBX TF

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Force: PO Robert Rodriguez used physical force against § 87(2)(b)	A . Exonerated
B . POM Robert Rodriguez	Abuse: PO Robert Rodriguez threatened to arrest § 87(2)(b)	B . Alleged Victim Uncooperative
C . POM Robert Rodriguez	Abuse: PO Robert Rodriguez frisked § 87(2)(b)	C . Substantiated
D . POM Thomas Nicoletti	Abuse: PO Thomas Nicoletti searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint on the CCRB's website on October 12, 2009 (Encl. 7A-E).

On September 30, 2009, at about 6:01 pm, § 87(2)(b) was driving in the vicinity of Throgsneck Expressway and Meagher Avenue in the Bronx with his friend § 87(2)(b) when two officers stopped his vehicle. The following allegations resulted:

- **Allegation A – Force:** PO Robert Rodriguez used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation A** be **Exonerated**.
- **Allegation B – Abuse of Authority:** PO Robert Rodriguez threatened to arrest § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B** be closed as **Victim Uncooperative**.
- **Allegation C – Abuse of Authority:** PO Robert Rodriguez frisked § 87(2)(b) § 87(2)(b) It is recommended that **Allegation C** be **Substantiated**.
- **Allegation D – Abuse of Authority:** PO Thomas Nicoletti searched the car in which § 87(2)(b) and § 87(2)(b) were occupants. § 87(2)(g) it is recommended that **Allegation D** be **Unsubstantiated**.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b)-old Caucasian male, § 87(2)(b), with blonde hair and blue eyes.

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on October 28, 2009 (Encl. 10A-F). On September 30, 2009, at approximately 6:01 pm, § 87(2)(b) was driving down Throgsneck Expressway near Meagher Avenue in the Bronx with his friend, Steve § 87(2)(b) in the passenger seat when he noticed PO1 (Hispanic male, 5'8", 200 lbs, chunky build, tattoos on right forearm, identified through the investigation as PO Robert Rodriguez) in the passenger seat of an RMP parked in

Veteran's Park about a quarter of a mile away to § 87(2)(b) left. PO2 (white male, 6'2", 200 lbs, athletic build, uniform, identified through the investigation as PO Thomas Nicoletti) was in the driver's seat. § 87(2)(b) continued driving. When he was about 50-70 feet away from PO Rodriguez, he saw one of the officers point at his vehicle. § 87(2)(b) continued driving and stopped at a red light behind a truck at the intersection of Throgsneck Expressway and Meagher Avenue, which was about 100-150 feet away from where the RMP was parked. PO Nicoletti then pulled out and put his siren on, followed by his lights. § 87(2)(b) was unsure of whether or not PO Nicoletti wanted him to pull over immediately or proceed through the light, and both § 87(2)(b) and the truck in front of him pulled over. Neither § 87(2)(b) nor § 87(2)(b) made any gestures or movements at this time. PO Nicoletti parked about 15-20 feet behind § 87(2)(b) and PO Rodriguez 'ran' out of the RMP. As PO Rodriguez and PO Nicoletti approached § 87(2)(b) vehicle, § 87(2)(b) rolled down both of his front windows. § 87(2)(b) also used his right hand to shift the car into park.

PO Nicoletti parked approximately 15-20 feet behind § 87(2)(b) PO Rodriguez then exited his car and 'ran' to a spot that was approximately 10 feet away from § 87(2)(b) car (in the street) and parallel with the back driver's side door. PO Nicoletti approached and stopped at the back passenger's side door. PO Rodriguez ordered § 87(2)(b) to hand over his keys, which were in § 87(2)(b) cup holder. Neither PO Nicoletti nor § 87(2)(b) said anything at this time and § 87(2)(b) handed PO Rodriguez his keys. PO Rodriguez then told § 87(2)(b) to roll down his windows and § 87(2)(b) stated that he would need his keys to do this, which annoyed PO Rodriguez. PO Rodriguez returned § 87(2)(b) keys and § 87(2)(b) rolled down his windows. § 87(2)(b) then gave his keys back to PO Rodriguez, and PO Rodriguez and PO Nicoletti returned to their vehicle for approximately three to five minutes. PO Nicoletti was in the driver's seat during this time. While PO Nicoletti remained in the RMP, PO Rodriguez returned to § 87(2)(b) vehicle with a tint meter and told him to roll up his windows 6 inches. § 87(2)(b) complied and PO Rodriguez measured the front window and said, "The legal percent is 70." PO Rodriguez then measured the rear window and said, "70 percent" in a rude tone. As PO Rodriguez returned to his RMP with the tint meter, § 87(2)(b) called his father, § 87(2)(b) so that his father could hear how rudely PO Rodriguez was speaking. § 87(2)(b) is a retired NYPD sergeant. PO Nicoletti was still inside the RMP at this time. At some point, PO Nicoletti exited his vehicle and stood near the front of it. PO Rodriguez then exited the RMP and approached § 87(2)(b) window while yelling, "License! License! License!" § 87(2)(b) opened the glove compartment, removed his wallet, placed the phone between his ear and shoulder and began looking through his wallet.

PO Rodriguez repeatedly said, "Get off the phone," and § 87(2)(b) consequently used his right hand to hand his phone to § 87(2)(b) while his left hand held his wallet. Suddenly, PO Rodriguez opened § 87(2)(b) door, used his right hand to grab § 87(2)(b) left bicep, pulled § 87(2)(b) out of his car and then used both of his hands to push § 87(2)(b) on the back, causing § 87(2)(b) chest to hit his car. § 87(2)(b) phone began ringing and he could tell from the ring that his father was calling. § 87(2)(b) told § 87(2)(b) to reach for the phone. As § 87(2)(b) reached for the phone, PO Rodriguez said to § 87(2)(b) "If you answer that phone, I'm going to arrest you, too." § 87(2)(b) told § 87(2)(b) to answer the phone anyway but § 87(2)(b) did not. § 87(2)(b) turned toward PO Rodriguez and said, "I'm getting arrested for what – having tints on my car?" PO Rodriguez ordered § 87(2)(b) not to look at him and again pushed him against the car in the same manner as before. PO Rodriguez then patted/ran both of his hands over § 87(2)(b) legs outer and inner legs, chest, waist and arms. He felt around § 87(2)(b) waistband but did not put his fingers inside. He also patted § 87(2)(b)

front and back jean pockets. The only thing that § 87(2)(b) had in any of his pockets was free floating money, and PO Rodriguez did not enter his pockets at any time. PO Rodriguez never said anything about weapons. § 87(2)(b) told § 87(2)(b) that he was being arrested for ‘tints’ and then looked at PO Rodriguez and said, “What am I getting arrested for?” PO Rodriguez again pushed § 87(2)(b) against the car. This push was hard and caused § 87(2)(b) thighs and knees to make contact with his door, which temporarily caved in and then popped back out from the force of the impact. At some point, PO Rodriguez said, “Spread your feet six inches.”

At some point, PO Nicoletti reached through § 87(2)(b) s window, took § 87(2)(b) phone out of § 87(2)(b) s hand and placed it on the roof of § 87(2)(b) car. PO Nicoletti did not make any physical contact with § 87(2)(b) at this time. PO Nicoletti then walked back to the RMP as PO Rodriguez handcuffed § 87(2)(b) and began to escort him back to the RMP. As PO Rodriguez was escorting § 87(2)(b) to the RMP, he stated that he had believed that § 87(2)(b) was “reaching for something.” PO Rodriguez placed § 87(2)(b) into the RMP and then returned to § 87(2)(b) vehicle and obtained his identification from § 87(2)(b) PO Rodriguez then returned to the passenger’s seat of the RMP. PO Nicoletti ran a check on § 87(2)(b) license, saw that § 87(2)(b) had an outstanding speeding ticket from five years prior, asked § 87(2)(b) where he had received it and then began to tell § 87(2)(b) about a similar experience that he had had when he was younger. § 87(2)(b) felt that PO Nicoletti was friendly and down to earth and his behavior made § 87(2)(b) much more comfortable. PO Rodriguez told § 87(2)(b) that he had taken him out of his car for PO Rodriguez’s safety because PO Rodriguez thought that he had been ‘reaching for something’ when he handed his phone to § 87(2)(b) § 87(2)(b) then watched as PO Rodriguez filled out every single summons that he would later receive.

Approximately 10-15 minutes after § 87(2)(b) had been placed into the RMP, § 87(2)(b) mother, § 87(2)(b), arrived on the scene. § 87(2)(b) father was not on the scene at any time. PO Rodriguez asked § 87(2)(b) who § 87(2)(b) was, and § 87(2)(b) replied that she was his mother. § 87(2)(b) approached PO Nicoletti and asked what was happening and PO Nicoletti replied that the situation concerned tints and was ‘nothing big.’ § 87(2)(b) then went to speak with § 87(2)(b) At some point, § 87(2)(b) parents drove by, stayed briefly and then left. § 87(2)(b) requested that his handcuffs be taken off and PO Rodriguez told him to lie down in the seat because no mother wants to see her son handcuffed. PO Rodriguez attempted to take § 87(2)(b) handcuffs off but could not. PO Rodriguez then had § 87(2)(b) exit the vehicle and removed his handcuffs there. PO Rodriguez again informed § 87(2)(b) that he had taken him out of his vehicle for ‘safety reasons.’

PO Rodriguez then gave § 87(2)(b) six summonses, § 87(2)(b) § 87(2)(g) PO Rodriguez and PO Nicoletti then drove back to the spot that they were initially in when § 87(2)(b) had first noticed them.

§ 87(2)(b) did not sustain any injuries as a result of this incident.

Witness: § 87(2)(b)
§ 87(2)(b) is a § 87(2)(b)-old Caucasian male, § 87(2)(b), with brown hair and brown eyes. He is the father of § 87(2)(b) § 87(2)(b)

CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on October 28, 2009 (Encl. 11A-E). On September 30, 2009, at approximately 6:01pm, § 87(2)(b) received a telephone call from his son. His son sounded very nervous and stated that he had just been stopped by a police officer named “Rodriguez,” whose name he had read off of the officer’s uniform. His son further stated that PO Rodriguez appeared to be out of control, had been yelling and screaming and had taken § 87(2)(b)’s keys back to his car without obtaining his license. His son then stated that PO Rodriguez was returning. § 87(2)(b) heard PO Rodriguez yell, “License!” approximately 10-12 times. § 87(2)(b) had been on the phone with his son for approximately 45 seconds at this time. He did not hear any other voices in the background. PO Rodriguez continued to repeat this for approximately five to ten seconds before the call was cut off. § 87(2)(b) called back approximately 10 times but no one picked up. The car that § 87(2)(b) was driving at the time of the incident belongs to § 87(2)(b). It is a white 2008 Infinity. § 87(2)(b) confirmed that the car had tinted windows at the time of the incident and stated that they have since been removed.

Attempts to Contact Civilians

The CCRB performed multiple contact attempts to reach § 87(2)(b). On November 5, 2009, the CCRB reached § 87(2)(b) via telephone, at which point § 87(2)(b) provided a brief description of the incident that largely corroborated § 87(2)(b)’s account. On March 26, 2010, § 87(2)(b) missed a previously scheduled in-person appointment without canceling or rescheduling in advance. The CCRB continued its attempts to reach § 87(2)(b) by mail and telephone. To date, § 87(2)(b) has not replied to the agency’s correspondence.

NYPD Statement(s):

Subject Officer: PO ROBERT RODRIGUEZ

- *PO Rodriguez is a § 87(2)(b)-old Hispanic male, § 87(2)(b), with brown hair and brown eyes.*
- *On September 30, 2009, PO Rodriguez worked from 4 pm to 12:35 am. He was assigned to sector patrol and was partnered with PO Thomas Nicoletti. He was in uniform and was using a marked RMP.*

CCRB Testimony

PO Rodriguez was interviewed at the CCRB on March 23, 2010 (Encl. 14A-C). On September 30, 2009, at approximately 6:01pm, PO Rodriguez was sitting in a marked RMP with PO Nicoletti that was parked on the Throgs Neck Expressway Service Road near Meagher Avenue in the Bronx. PO Rodriguez was in the passenger seat. The officers were doing observational traffic enforcement. PO Rodriguez saw § 87(2)(b) vehicle, a white Infinity G35 with heavily tinted windows, moving down the service road in the direction of Meagher Avenue. It had yet to pass the officer’s car. Because of the window tints, PO Rodriguez was unable to see inside § 87(2)(b) car. § 87(2)(b) car was moving at approximately the speed limit, which was 30 MPH. PO Rodriguez pointed out the car to PO Nicoletti and suggested that PO Nicoletti pursue it and pull it over. As § 87(2)(b) car began to pass the officers’ car, PO Rodriguez activated his turret lights and sirens. § 87(2)(b) did not slow down or pull over. PO Nicoletti pulled out and began to pursue § 87(2)(b) car. § 87(2)(b) still did not pull over. Due to § 87(2)(b) failure to pull over, PO Rodriguez began to suspect that § 87(2)(b) vehicle may have been stolen. As § 87(2)(b) approached Meagher Avenue, which was approximately 300 yards from where the officers had

been parked, PO Nicoletti pulled in front of § 87(2)(b) vehicle, forcing § 87(2)(b) to pull over. Approximately 15 seconds had elapsed between the time that PO Nicoletti pulled out and the time that § 87(2)(b) pulled over. PO Rodriguez exited his vehicle, approached § 87(2)(b) vehicle and told § 87(2)(b) who was sitting in the driver's seat, to lower his window, which he did. PO Rodriguez then asked § 87(2)(b) to give him the keys to the vehicle, which he did not. PO Rodriguez consequently took § 87(2)(b) keys and placed them on the roof of § 87(2)(b) vehicle to prevent him from fleeing. At approximately this time, PO Nicoletti moved the officers' car to the rear of § 87(2)(b) vehicle.

PO Rodriguez briefly returned to his vehicle, ran § 87(2)(b) plates and determined that the vehicle had not been reported stolen. PO Rodriguez then returned to § 87(2)(b) vehicle and asked § 87(2)(b) why it had taken him so long to pull over. (At the time of his interview, PO Rodriguez could not recall what § 87(2)(b) response was.) PO Rodriguez explained to § 87(2)(b) that he had been pulled over because he had excess tints on his windows and the officers could not see inside. PO Rodriguez then requested § 87(2)(b) driver's license. Neither § 87(2)(b) nor § 87(2)(b) who was sitting in the passenger seat, had made any furtive movements by this time. § 87(2)(b) replied, "My daddy's § 87(2)(b). I don't have to give you anything." PO Rodriguez explained that § 87(2)(b) was legally required to provide his license and § 87(2)(b) replied that he did not have to provide this information to PO Rodriguez.

§ 87(2)(b) phone rang and he picked it up. PO Rodriguez told § 87(2)(b) that, if he refused to provide his identification, PO Rodriguez would have to handcuff him and "figure it out at the stationhouse." PO Rodriguez asked § 87(2)(b) if he understood and § 87(2)(b) said, "Yeah, I'm not doing that. It's ridiculous." He may have been speaking into his phone at this time. PO Rodriguez was standing approximately two feet away from § 87(2)(b). PO Rodriguez said, "I'm ordering you, you have to surrender your license. Otherwise, I'm going to have to place you under arrest to find out who you are. Your identification, you're required to surrender it." § 87(2)(b) stated, "I don't have to give you anything." PO Rodriguez opened § 87(2)(b) driver's side door and PO Nicoletti exited the patrol car. (PO Nicoletti had remained in the RMP up until this time.) PO Rodriguez told § 87(2)(b) that he would have to get out of his vehicle, reached out, touched § 87(2)(b) left wrist and guided § 87(2)(b) out of the vehicle as § 87(2)(b) stepped out. PO Rodriguez denied forcefully removing § 87(2)(b) from the vehicle. § 87(2)(b) remained on the phone during this time. PO Rodriguez ordered § 87(2)(b) to put his phone down and § 87(2)(b) said into the phone, "I don't know what he thinks he's gonna try to do. He's gonna try to arrest me or whatever." PO Rodriguez took § 87(2)(b) phone and placed it on the driver's seat of the car. PO Rodriguez told § 87(2)(b) to place his hands on the roof. At this time, PO Rodriguez intended to frisk § 87(2)(b) for his safety. PO Rodriguez feared for his safety because § 87(2)(b) had refused to comply with his orders. § 87(2)(b) told § 87(2)(b) "Don't give him anything." At some point, PO Rodriguez noticed that § 87(2)(b) license was sitting in the center of his console.

During his interview, PO Rodriguez called that § 87(2)(b) made a "furtive movement" at this time but was unable to recall the specifics of this movement. PO Rodriguez stated that he believed that § 87(2)(b) first reached toward his glove box and then under his seat. PO Rodriguez ordered § 87(2)(b) to keep his hands on the dashboard.

PO Rodriguez told § 87(2)(b) that he was going to frisk him for weapons and asked if he had anything that could be dangerous. § 87(2)(b) replied, "You can't do that!" and pushed himself off of the car toward PO Rodriguez while turning toward PO Rodriguez. Based on his experience

with vehicle stops, PO Rodriguez interpreted this movement as the beginnings of an attempt at physical resistance and became concerned about the potential for a physical confrontation. (During his interview, PO Rodriguez explained that § 87(2)(b) was a young man in good shape who could have posed a significant physical threat.) In order to maintain control of § 87(2)(b) PO Rodriguez placed his hands on § 87(2)(b) back and pushed him back toward the car. (He did not believe that this push was especially strong. This was the only time that PO Rodriguez pushed § 87(2)(b) against a vehicle.) PO Rodriguez said, “You can’t resist. Don’t push. If you start fighting, it’s going to make everything a lot worse. Just do what you’re told.” PO Rodriguez then ordered § 87(2)(b) to place his hands behind his back. § 87(2)(b) did not initially comply and PO Rodriguez repeated the order three or four times before § 87(2)(b) complied.

PO Rodriguez then handcuffed § 87(2)(b) and frisked him. PO Rodriguez believed at the time that, given § 87(2)(b) behavior, handcuffing § 87(2)(b) was necessary to ensure his safety. PO Rodriguez’s reasons for frisking § 87(2)(b) were that § 87(2)(b) had refused to comply with PO Rodriguez’s orders, including his order to provide ID and that § 87(2)(b) general demeanor suggested to PO Rodriguez that he would readily use a weapon against PO Rodriguez if he had one concealed on his person. (PO Rodriguez noted during his interview that, although he had decided to frisk § 87(2)(b) before § 87(2)(b) attempted to physically resist him, § 87(2)(b) attempt at physical resistance occurred before the actual frisk took place and further contributed to PO Rodriguez’s concern for his safety.) PO Rodriguez did not see any bulges on § 87(2)(b) person before frisking him. PO Nicoletti was not involved in handcuffing or frisking § 87(2)(b). The frisk took place on the driver’s side of § 87(2)(b) vehicle.

After escorting § 87(2)(b) to the RMP and placed him in the back, PO Rodriguez returned to § 87(2)(b) car, at which time § 87(2)(b) provided him with § 87(2)(b) driver’s license. PO Rodriguez ran a check on § 87(2)(b) license, which yielded no red flags. PO Rodriguez then returned to § 87(2)(b) vehicle and checked his tints using a window tint meter; the results were that the tints on § 87(2)(b) windows exceeded the legal limit. PO Rodriguez then returned to his vehicle. At this time, § 87(2)(b) was still upset and behaving aggressively. PO Rodriguez explained to § 87(2)(b) that he had only been pulled over because of an equipment violation, that the violation was “nothing major” and that he did not understand why § 87(2)(b) had responded in the manner that he had. § 87(2)(b) calmed down and suddenly became apologetic, sincere and “sweet as pie.” § 87(2)(b) apologized, stated that he did not know what had come over him and acknowledged that he had overreacted. PO Rodriguez told § 87(2)(b) that he had been required to surrender his license and explained that § 87(2)(b) refusal to do so, in conjunction with the fact that PO Rodriguez had been unable to see inside § 87(2)(b) vehicle because of the tints, elevated PO Rodriguez’s suspicions. PO Rodriguez added that a police officer had died a couple of years ago while stopping a vehicle for tinted windows under comparable circumstances and § 87(2)(b) calmed down and apologized further. At this time, PO Rodriguez felt that § 87(2)(b) was no longer a threat to him. § 87(2)(b) mother arrived on the scene shortly thereafter and PO Rodriguez decided not to arrest § 87(2)(b) in order to spare his mother the distress of seeing § 87(2)(b) arrested. PO Rodriguez released § 87(2)(b) and issued him several summonses. It was PO Rodriguez’s decision to issue § 87(2)(b) these summonses.

PO Nicoletti never directly interacted with § 87(2)(b). PO Rodriguez specifically denied that PO Nicoletti ever reached into § 87(2)(b) s window and took § 87(2)(b) s phone out of his hand. PO Rodriguez knew that PO Nicoletti had not done this because PO Nicoletti never approached § 87(2)(b) vehicle at any time. Besides the references to arrest discussed above, neither PO Rodriguez nor PO Nicoletti made any additional references to

anyone being arrested, handcuffed, or taken to the stationhouse. Neither officer called anyone a “smart ass” or used any profanity during the incident. Neither officer said, “If you answer the phone, I’m gonna arrest you too,” or anything to that effect.

Subject Officer: PO THOMAS NICOLETTI

- PO Nicoletti is a § 87(2)(b)-old Caucasian male, § 87(2)(b), with brown hair and brown eyes.
- On September 30, 2009, PO Nicoletti worked from 4 pm to 12:35 am. He was assigned to sector patrol and worked with PO Rodriguez. He was in uniform and was using a marked RMP.

CCRB Testimony

PO Nicoletti was interviewed at the CCRB on March 24, 2010 (Encl. 16A-C). § 87(2)(g)

PO Nicoletti saw that PO Rodriguez was speaking with § 87(2)(b) but could not hear what was being said. After approximately one minute, PO Rodriguez opened § 87(2)(b) door and PO Nicoletti, who inferred that the conversation between PO Rodriguez and § 87(2)(b) was going in “the wrong direction,” exited his vehicle to assist PO Rodriguez if necessary. PO Rodriguez reached out and grabbed onto § 87(2)(b) arm and held it while § 87(2)(b) exited his vehicle. PO Rodriguez did not drag § 87(2)(b) or use any force to remove him from the vehicle.

PO Nicoletti moved to the rear of the driver’s side of § 87(2)(b) vehicle at this time. PO Rodriguez instructed § 87(2)(b) to move up against the car. § 87(2)(b) initially did not comply and repeatedly pulled away from PO Rodriguez. Once § 87(2)(b) was facing the car, he repeatedly attempted to spin toward PO Rodriguez while protesting that he did not have to provide his license. PO Rodriguez repeatedly ordered § 87(2)(b) to turn back toward the car and place his hands behind his back but § 87(2)(b) did not comply until several orders had already been issued.

§ 87(2)(b) handed PO Rodriguez § 87(2)(b) driver’s license, which PO Rodriguez passed to PO Nicoletti. PO Rodriguez and PO Nicoletti then entered the RMP with § 87(2)(b). PO Nicoletti entered the driver’s seat and did not exit the RMP again for the rest of the incident. PO Nicoletti ran checks on § 87(2)(b) license and license plate while PO Rodriguez wrote summonses to issue to § 87(2)(b). While this was happening, § 87(2)(b) mother and § 87(2)(b) § 87(2)(b) s mother both arrived on the scene. § 87(2)(b) s mother approached PO Nicoletti’s window but walked away when PO Nicoletti told her that he would not be able to provide her with any information at that time.

PO Nicoletti never heard PO Rodriguez use any profanity. He did not recall PO Rodriguez threatening to arrest either § 87(2)(b) or § 87(2)(b) and did not hear him threaten to bring either to the stationhouse. He did not recall any conversation involving a cell phone and did not recall either § 87(2)(b) or § 87(2)(b) being on a cell phone at any time.

PO Nicoletti never put any body part inside the window or door frame. He specifically denied reaching into the window and taking a cell phone out of § 87(2)(b) s hand. He did not see PO Rodriguez do this. PO Nicoletti never moved any closer to the car than its rear doors.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of May 24, 2010 with regard to the incident.

Civilian(s) Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] and [§ 87(2)(b)] (Encl. 5A and 6A).

Subject Officer(s) CCRB History

- PO Rodriguez has been a member of the service for nine years and there are no substantiated CCRB allegations against him (Encl. 3A-B and 4A).
- PO Nicoletti has been a member of the service for nine years and there are no substantiated CCRB allegations against him (Encl.).

Conclusion

Identification of Subject Officer(s)

PO Rodriguez and PO Nicoletti confirmed their presence during the incident and are both being listed as subject officers.

Investigative Findings and Recommendations

Allegation Not Pled

[§ 87(2)(g)]

Allegation A – Force: PO Robert Rodriguez used physical force against [§ 87(2)(b)]

It is undisputed that PO Rodriguez used force in removing [§ 87(2)(b)] from the vehicle. [§ 87(2)(g)]

[§ 87(2)(b)] PO Nicoletti confirmed that PO Rodriguez did not drag, push, or shove [§ 87(2)(b)] against the vehicle at any point and added that [§ 87(2)(b)] initially refused to place his hands behind his back several times. Departmental protocol dictates that an officer may employ various compliance techniques such as wrestling holds and grips in order to overcome minor physical resistance (Encl. 1A). NYPD Students Training Guide, p. 8. [§ 87(2)(g)]

[§ 87(2)(b)] it is recommended that

Allegation A be Exonerated.

Allegation B – Abuse of Authority: PO Robert Rodriguez threatened to arrest [§ 87(2)(b)]

§ 87(2)(g)

it is recommended that
Allegation B be closed as Victim Uncooperative.

Allegation C – Abuse of Authority: PO Robert Rodriguez frisked § 87(2)(b)

It is undisputed that PO Rodriguez frisked § 87(2)(b). Legal protocol dictates that an officer is not permitted to frisk the driver or other occupants of a car unless he has a reasonable basis for suspecting that the individual is armed and may be dangerous (Encl. 2A-B). Kamins, New York Search & Seizure, §5.03, p.67-68. PO Rodriguez stated that he frisked § 87(2)(b) for his safety after § 87(2)(b) refused to provide his identification and displayed an unruly demeanor. PO Rodriguez testified that he made the decision to frisk § 87(2)(b) before the civilian even exited the vehicle. The officer further stated that he frisked § 87(2)(b) after placing him in handcuffs.

§ 87(2)(g)

it is recommended that **Allegation C be Substantiated.**

Allegation D – Abuse of Authority: PO Thomas Nicoletti searched the car in which § 87(2)(b)
and § 87(2)(b) were occupants.

§ 87(2)(g)

it is recommended
that **Allegation D be Unsubstantiated.**

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date